

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MICHAEL MILLINER, NEEMA JOHNSON
and AMAYIA McCRAY,

Plaintiffs,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. "JOHN" MAJUD - Registry
No. 956395 and JOHN DOES – Police Officers,

Defendants.
-----X

To the above-named Defendants

Index No.

Date Purchased:

Plaintiffs designate

BRONX COUNTY

as the place of trial

The basis of the venue is the
place in which the cause of
action arose

SUMMONS

Plaintiffs reside at

352 Beekman Ave. – Apt. 6G

Bronx, New York 10454

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: February 10, 2022

JOSEPH T. MULLEN, JR. & ASSOCIATES

By: _____

Joseph T. Mullen, Jr.

Attorneys for Plaintiffs

30 Vesey Street, 15th Floor

New York, New York 10007

212.766.1177

THE NEW YORK CITY POLICE DEPARTMENT

One Police Plaza

New York, New York 10038

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

P.O. "John" Majud – Registry No. 956395
One Police Plaza
New York, New York 10038

JOHN DOES - Police Officers
One Police Plaza
New York, New York 10038

The nature of this action is set forth in the Complaint.

The relief sought is set forth in Complaint.

Upon your failure to appear, judgment will be taken against you by default for a monetary amount, which exceeds the jurisdictional limits of all lower Courts, and the costs of this action

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.
MICHAEL MILLINER, NEEMA JOHNSON
and AMAYIA McCRAY,

Plaintiffs,

- against -

VERIFIED
COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. "JOHN" MAJUD –
Registry No. 956395, and JOHN DOES – Police Officers,

Defendants.
-----X

Plaintiffs, complaining of the defendants, by their attorneys, Joseph T. Mullen, Jr. & Associates, upon information and belief, allege as follows:

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL MILLINER

1. On and prior to December 16, 2020, Plaintiff, MICHAEL MILLINER, was and still is a resident of the County of Bronx, City and State of New York.
2. Upon information and belief, on and prior to December 16, 2020, THE CITY OF NEW YORK ("THE CITY") was a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, on and prior to December 16, 2020, defendant, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD") was and still is an agency of THE CITY and subject to its control.
4. Upon information and belief, on and prior to December 16, 2020, defendant NYPD was a division of THE CITY organized and existing under and by virtue of the laws of the City and State of New York.

5. Upon information and belief, on and prior to December 16, 2020, defendant P.O “JOHN” MAJUD – Registry No. 956395, was a duly appointed and acting officer of the NEW YORK CITY POLICE DEPARTMENT.

6. On and prior to December 16, 2020, defendant “JOHN” MAJUD – Registry No. 956395, was acting under color of law, to wit: under color of the statutes, ordinances, regulations, policies, customs and practices of THE CITY and NYPD and/or the State of New York.

7. Upon information and belief, on and prior to December 16, 2020, defendants, JOHN DOES – Police Officers, were duly appointed and acting officers of the NEW YORK CITY POLICE DEPARTMENT.

8. On and prior to December 16, 2020, defendants, JOHN DOES – Police Officers, were acting under color of law, to wit: under color of the statutes, ordinances, regulations, policies, customs and practices of THE CITY and NYPD and/or the State of New York.

9. On February 16, 2021, plaintiff caused a Notice of Claim, in writing and sworn to and verified by the claimant’s attorney, to be electronically served upon THE CITY and NYPD at the office of the Corporation Counsel of the City of New York.

10. On February 18, 2021, plaintiff caused a Notice of Claim, in writing and sworn to and verified by the claimant’s attorney, to be personally served upon THE CITY and NYPD at the office of the Corporation Counsel of the City of New York.

11. At least 30 days have elapsed prior to the commencement of this action since the claim was presented to said defendants for adjustment as aforesaid, and they have refused adjustment or payment.

12. A hearing pursuant to the General Municipal Law Subsection 50-h was held on June 2, 2021.

13. This action is timely commenced pursuant to General Municipal Law Subsection 50-i(1) in that the action has been commenced within one year and 90 days after the cause of action thereof accrued.

14. Plaintiff has, in all respects, complied with all statutory requirements for the commencement and prosecution of this action.

15. On and prior to December 16, 2020, as members of the NYPD, defendants, "JOHN" MAJUD and JOHN DOES – Police Officers, were agents, employees and servants of THE CITY and acted within the scope of their employment and authority as New York City Police Officers.

16. On December 16, 2020, Plaintiff MICHAEL MILLINER was lawfully present in Apartment 6G of the premises known as and located at 352 Beekman Avenue, Bronx, New York (the "Premises").

17. On December 16, 2020, Plaintiff was not violating any laws and, while he was within the Premises, the Premises was searched without a warrant and/or probable cause and Plaintiff was arrested without a warrant or probable cause and assaulted, battered, beaten, struck, manhandled and subjected to profanity by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers.

18. On December 16, 2020, the Premises was searched without a search warrant and without probable cause by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers.

19. On December 16, 2020, Plaintiff was placed under arrest by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, and thereafter confined without consent for an unreasonable amount of time.

20. On December 16, 2020, the arrest and confinement of Plaintiff was without probable cause and not based on an arrest warrant.

21. On December 16, 2020, the search, arrest and confinement were effectuated by the defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, acting within the scope, course and in furtherance of their employment.

22. As a result of the aforesaid unlawful search and seizure and false arrest and confinement, the plaintiff, MICHAEL MILLINER, sustained serious personal injuries along with humiliation, shame, indignity, damage to reputation and credit, and suffered emotional and physical distress and injury, all to his damage in a monetary amount, which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL MILLINER

23. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "22," inclusive, as if more fully set forth at length herein.

24. On December 16, 2020, defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, acted within the scope of their employment and, without justification and without probable cause, imprisoned the plaintiff by detaining him without cause and against his will thereby depriving him of his civil rights.

25. The confinement of Plaintiff by the defendants was against his will and said confinement was not privileged.

26. As a result of the aforesaid false imprisonment, Plaintiff sustained serious permanent personal injuries along with humiliation, shame, indignity, and emotional and physical distress and injury, all to his damage in a monetary amount, which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL MILLINER

27. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "26," inclusive, as if more fully set forth at length herein.

28. Defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, upon information and belief, did for no apparent reason and without a search or arrest warrant or probable cause, falsely approach, stop, assault, beat, push, search, harass, degrade and humiliate the plaintiff, MICHAEL MILLINER, and cause Plaintiff to fear for his safety.

29. On December 16, 2020, the defendants were working within the scope, course and in furtherance of their employment and authority when they intentionally, recklessly and negligently assaulted and battered the plaintiff, MICHAEL MILLINER.

30. That the assault and battery were without probable cause and not leading from a lawful arrest or search warrant.

31. Defendants were reckless, negligent and careless in that they did not stop or refrain from using excessive physical force upon the Plaintiff.

32. That as a result of the aforesaid assault and battery, the Plaintiff, MICHAEL MILLINER, sustained serious permanent personal injuries.

33. Defendants' actions as aforesaid were wanton, willful and malicious and Plaintiff is entitled to punitive damages and attorneys' fees in amounts to be determined upon the trial of this action.

34. As a result of the aforesaid assault and battery, the Plaintiff, MICHAEL MILLINER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit, loss of employment and employment opportunities, and suffered emotional and

physical distress and injury, all to his damage in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL MILLINER

35. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "34," inclusive, as if more fully set forth at length herein.

36. On December 16, 2020, defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, commenced a criminal proceeding against the Plaintiff by issuing a Criminal Court Appearance ticket to the Plaintiff charging him with violating Section 221.10 of the Penal Law.

37. At the time the criminal proceeding was commenced against the Plaintiff, there was no probable cause to charge him with said violation of the Penal Law.

38. On December 16, 2020, the criminal proceeding against the Plaintiff was brought out of actual malice and to cover up the assault and battery, illegal imprisonment, illegal search and seizure and false arrest of the Plaintiff by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers.

39. The criminal proceeding was terminated in favor of the Plaintiff on or about March 16, 2021.

40. Defendants' actions as aforesaid were wanton, willful and malicious, and Plaintiff is entitled to punitive damages and attorneys' fees in amounts to be determined upon the trial of this action.

41. As a result of the aforesaid malicious prosecution, Plaintiff MICHAEL MILLINER sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit, loss of employment and employment opportunities, and suffered emotional and physical distress and injury, all to his damage in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL MILLINER

42. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "41," inclusive, as if more fully set forth at length herein.

43. Defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, in their actions as police officers, acting under color of law and within the scope of their authority, assaulted and battered the plaintiff and unlawfully searched the Premises in violation of 42 U.S.C.A. §1983.

44. The intentional beatings of Plaintiff by the defendant police officers, when Plaintiff was unarmed, did not pose a threat of death or grievous bodily injury to defendants or others, was done with actual malice toward the Plaintiff and with willful and wanton indifference to and deliberate disregard for the constitutional and statutory civil rights of the Plaintiff.

45. Defendants, in their actions as police officers, acting under color of law and within the scope of their authority, unlawfully searched the Premises and deprived the plaintiff of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. § 1983.

46. Defendants deprived the plaintiff, by their actions, of his civil rights as guaranteed by statute.

47. The unlawful search and seizure and false arrest and confinement were in violation of the civil rights of the Plaintiff, and more particularly, in violation of 42 U.S.C.A. § 1983.

48. The deprivation by the defendants of plaintiff's civil rights was a result of said defendants acting under color of law and within their authority as law enforcement officers within the employ of THE CITY and the NYPD.

49. Defendants, in their actions as police officers, sought and obtained charges against Plaintiff of possession of marijuana in the fifth degree (PL 221.10), a non-arrestable offense.

50. Defendants, in their actions as police officers, had no probable cause to complain against the plaintiff for the said offenses.

51. Defendants, in their actions as police officers, falsely and maliciously represented to the Criminal Court of the City of New York that the plaintiff had committed said offenses, in order to make it appear that there had been justification for the illegal search and seizure, and use of excessive force, and in order to protect themselves from criminal and civil liability.

52. The defendant police officers' actions were not privileged or immune.

53. The defendant police officers were not acting with immunity when they deprived plaintiff of his civil rights.

54. As a result of the violation of his civil rights, plaintiff MICHAEL MILLINER has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL MILLINER

55. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "54," inclusive, as if more fully set forth at length herein.

56. NYPD and the CITY were responsible for hiring and training police officers, including the defendant police officers herein, who were competent and capable of properly carrying out their job without causing injury to persons, including Plaintiff herein.

57. NYPD and the CITY were negligent, reckless and careless in the hiring, training and retention of the defendant police officers.

58. NYPD and the CITY negligently failed to investigate and determine whether the defendant police officers were capable and competent to properly carry out their jobs without causing injury to persons, including Plaintiff herein.

59. Upon information and belief, prior to the aforementioned incident, defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, had exhibited behavior indicating that they were unable to perform their duties as police officers in a capable and competent manner.

60. As a result of the negligence of the NYPD and the CITY in the hiring, training and retention of the aforementioned police officers, plaintiff MICHAEL MILLINER was caused to sustain serious personal injuries, emotional anguish and deprivation of his civil rights and has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL MILLINER

61. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "60," inclusive, as if more fully set forth at length herein.

62. Prior to December 16, 2020, THE CITY and NYPD permitted and tolerated a pattern and practice of unjustified, unreasonable and illegal use of unreasonable and excessive force of minorities by police officers of the NYPD. Although such conduct was improper, the officers involved were not disciplined, retrained or prosecuted and such incidents were covered up with claims that the use of excessive force was justified and proper. Additionally, the CITY and NYPD permitted and tolerated a practice of allowing its officers to cover up their use of excessive force by filing false charges for, among other things, "Possession of Marijuana in the Fifth Degree", a non-arrestable offense.

63. As a result, police officers of the NYPD were caused and encouraged to believe that the use of excessive force upon minorities would be permitted and tolerated by the CITY and NYPD.

64. In addition to permitting a pattern of practice of improper and excessive use of force, the defendants, CITY and NYPD, have failed to maintain a proper system for the investigation of all incidents of excessive force.

65. Upon information and belief, systemic flaws in the system included, but are not limited to: failing to credit testimony of non-police officer witnesses and uncritically relying on reports prepared by police officers involved in the incident.

66. The foregoing acts, omissions, systemic flaws, policies and customs of THE CITY and NYPD caused their police officers to believe that the use of excessive force and their efforts to cover up such behavior by filing false charges would not be aggressively, honestly and properly investigated, with the foreseeable result that police officers would be more likely to engage in such behavior.

67. As a direct and proximate result of the aforesaid acts, systemic flaws, policies and customs of the defendants, CITY and NYPD, the defendant police officers violated the Plaintiff's civil rights.

68. As a result of the above, Plaintiff was caused to suffer serious personal injuries all to his damage in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF MICHAEL MILLINER

69. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "68," inclusive, as if more fully set forth at length herein.

70. On December 16, 2020, defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, commenced a criminal proceeding against the Plaintiff by issuing a Criminal Court Appearance ticket to the Plaintiff charging him with violating Section 221.10 of the Penal Law.

71. At the time the criminal proceeding was commenced against the Plaintiff, there was no probable cause to charge him with said violation of the Penal Law.

72. On December 16, 2020, the criminal proceeding against the Plaintiff was brought out of actual malice and to cover up the assault and battery, illegal imprisonment, illegal search and seizure and false arrest of the Plaintiff by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers.

73. Defendants, in their actions as police officers, sought and obtained charges against Plaintiff of possession of marijuana in the fifth degree (PL 221.10), a non-arrestable offense.

74. Defendants, in their actions as police officers, had no probable cause to complain against the plaintiff for the said offenses.

75. Defendants, in their actions as police officers, falsely and maliciously represented to the Criminal Court of the City of New York that the plaintiff had committed said offenses, in order to make it appear that there had been justification for the illegal search and seizure, and use of excessive force, and in order to protect themselves from criminal and civil liability.

76. The defendant police officers' actions were not privileged or immune.

77. The defendant police officers were not acting with immunity when they maliciously prosecuted the Plaintiff and deprived plaintiff of his civil rights.

78. The criminal proceeding was terminated in favor of the Plaintiff on or about March 16, 2021.

79. The malicious prosecution of the Plaintiff was in violation of the civil rights of the Plaintiff, and more particularly, in violation of 42 U.S.C.A. § 1983.

80. As a result of the violation of his civil rights, plaintiff MICHAEL MILLINER has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF NEEMA JOHNSON

81. On and prior to December 16, 2020, Plaintiff NEEMA JOHNSON, was and still is a resident of the County of Bronx, City and State of New York.

82. Upon information and belief, on and prior to December 16, 2020, THE CITY OF NEW YORK ("THE CITY") was a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

83. Upon information and belief, on and prior to December 16, 2020, defendant THE NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD") was and still is an agency of THE CITY and subject to its control.

84. Upon information and belief, on and prior to December 16, 2020, defendant NYPD was a division of THE CITY organized and existing under and by virtue of the laws of the City and State of New York.

85. Upon information and belief, on and prior to December 16, 2020, defendant P.O. "JOHN" MAJUD – Registry No. 956395, was a duly appointed and acting officer of the NEW YORK CITY POLICE DEPARTMENT.

86. On and prior to December 16, 2020, defendant "JOHN" MAJUD – Registry No. 956395, was acting under color of law, to wit: under color of the statutes, ordinances, regulations, policies, customs and practices of THE CITY and NYPD and/or the State of New York.

87. Upon information and belief, on and prior to December 16, 2020, defendants, JOHN DOES – Police Officers, were duly appointed and acting officers of the NEW YORK CITY POLICE DEPARTMENT.

88. On and prior to December 16, 2020, defendants, JOHN DOES – Police Officers, were acting under color of law, to wit: under color of the statutes, ordinances, regulations, policies, customs and practices of THE CITY and NYPD and/or the State of New York.

89. On February 16, 2021, plaintiff NEEMA JOHNSON caused a Notice of Claim, in writing and sworn to and verified by the claimant's attorney, to be electronically served upon THE CITY and NYPD at the office of the Corporation Counsel of the City of New York.

90. On February 18, 2021, plaintiff NEEMA JOHNSON caused a Notice of Claim, in writing and sworn to and verified by the claimant's attorney, to be personally served upon THE CITY and NYPD at the office of the Corporation Counsel of the City of New York.

91. At least 30 days have elapsed prior to the commencement of this action since the claim was presented to said defendants for adjustment as aforesaid, and they have refused adjustment or payment.

92. A hearing pursuant to the General Municipal Law Subsection 50-h was held on June 2, 2021.

93. This action is timely commenced pursuant to General Municipal Law Subsection 50-i(1) in that the action has been commenced within one year and 90 days after the cause of action thereof accrued.

94. Plaintiff NEEMA JOHNSON has, in all respects, complied with all statutory requirements for the commencement and prosecution of this action.

95. On and prior to December 16, 2020, as members of the NYPD, defendants, "JOHN" MAJUD and JOHN DOES – Police Officers, were agents, employees and servants of THE CITY and acted within the scope of their employment and authority as New York City Police Officers.

96. On December 16, 2020, Plaintiff NEEMA JOHNSON was lawfully present in Apartment 6G of the premises known as and located at 352 Beekman Avenue, Bronx, New York (the "Premises").

97. On December 16, 2020, Plaintiff NEEMA JOHNSON was not violating any laws and, while she was within the Premises, the Premises was searched without a warrant and/or probable cause and Plaintiff was detained and imprisoned without a warrant or probable cause and assaulted, struck, manhandled and subjected to profanity by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers.

98. On December 16, 2020, the Premises was searched without a search warrant and without probable cause by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers.

99. On December 16, 2020, Plaintiff NEEMA JOHNSON was confined for an unreasonable amount of time by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers.

100. On December 16, 2020, the confinement of Plaintiff NEEMA JOHNSON was without probable cause and not based on an arrest warrant.

101. On December 16, 2020, the search and confinement were effectuated by the defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, acting within the scope of their employment.

102. As a result of the aforesaid unlawful search and seizure and false confinement, the plaintiff, NEEMA JOHNSON sustained serious personal injuries along with humiliation, shame, indignity, damage to reputation and credit, and suffered emotional and physical distress and injury, all to her damage in a monetary amount, which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF NEEMA JOHNSON

103. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "81" through "102," inclusive, as if more fully set forth at length herein.

104. On December 16, 2020, defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, acted within the scope of their employment and, without justification and without probable cause, imprisoned the plaintiff NEEMA JOHNSON by detaining her without cause and against her will thereby depriving her of her civil rights.

105. The confinement of Plaintiff NEEMA JOHNSON by the defendants was against her will and said confinement was not privileged.

106. As a result of the aforesaid false imprisonment, Plaintiff NEEMA JOHNSON sustained serious permanent personal injuries along with humiliation, shame, indignity, and emotional and physical distress and injury, all to her damage in a monetary amount, which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF NEEMA JOHNSON

107. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "81" through "106," inclusive, as if more fully set forth at length herein.

108. On December 16, 2020, Defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, upon information and belief, did for no apparent reason and without a search or arrest warrant or probable cause, falsely approach, stop, assault, beat, push, search, harass, degrade and humiliate the plaintiff, NEEMA JOHNSON, and cause Plaintiff to fear for her safety.

109. On December 16, 2020, the defendants were working and acting within the scope, course and in furtherance of their employment and authority when they intentionally, recklessly and negligently assaulted and manhandled the plaintiff, NEEMA JOHNSON.

110. That the assault and manhandling were without probable cause and not leading from a lawful arrest or search warrant.

111. Defendants were reckless, negligent and careless in that they did not stop or refrain from using excessive physical force upon the Plaintiff NEEMA JOHNSON.

112. That as a result of the aforesaid assault and manhandling, the Plaintiff, NEEMA JOHNSON, sustained serious permanent personal injuries.

113. Defendants' actions as aforesaid were wanton, willful and malicious, and Plaintiff NEEMA JOHNSON is entitled to punitive damages and attorneys' fees in amounts to be determined upon the trial of this action.

114. As a result of the aforesaid assault and manhandling, the Plaintiff, NEEMA JOHNSON, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit, loss of employment and employment opportunities, and suffered emotional and physical distress and injury, all to her damage in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF NEEMA JOHNSON

115. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "81" through "114," inclusive, as if more fully set forth at length herein.

116. Defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, in their actions as police officers, acting under color of law and within the scope of their authority, assaulted and

manhandled the plaintiff NEEMA JOHNSON and unlawfully searched the Premises in violation of 42 U.S.C.A. §1983.

117. The intentional offensive touching of Plaintiff NEEMA JOHNSON by the defendant police officers, when Plaintiff was unarmed, did not pose a threat of death or grievous bodily injury to defendants or others, was done with actual malice toward the Plaintiff NEEMA JOHNSON and with willful and wanton indifference to and deliberate disregard for the constitutional and statutory civil rights of the Plaintiff.

118. Defendants, in their actions as police officers, acting under color of law and within the scope of their authority, unlawfully searched the Premises and deprived the plaintiff NEEMA JOHNSON of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. § 1983.

119. Defendants deprived the plaintiff, NEEMA JOHNSON, by their actions, of her civil rights as guaranteed by statute.

120. The unlawful search and seizure and false confinement were in violation of the civil rights of the Plaintiff NEEMA JOHNSON, and more particularly, in violation of 42 U.S.C.A. § 1983.

121. The deprivation by the defendants of plaintiff NEEMA JOHNSON's civil rights was a result of said defendants acting under color of law and within their authority as law enforcement officers within the employ of THE CITY and the NYPD.

122. The defendant police officers' actions were not privileged or immune.

123. The defendant police officers were not acting with immunity when they deprived plaintiff NEEMA JOHNSON of her civil rights.

124. As a result of the violation of her civil rights, plaintiff NEEMA JOHNSON has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF NEEMA JOHNSON

125. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "81" through "124," inclusive, as if more fully set forth at length herein.

126. NYPD and the CITY were responsible for hiring and training police officers, including the defendant police officers herein, who were competent and capable of properly carrying out their job without causing injury to persons, including Plaintiff NEEMA JOHNSON herein.

127. NYPD and the CITY were negligent, reckless and careless in the hiring, training and retention of the defendant police officers.

128. NYPD and the CITY negligently failed to investigate and determine whether the defendant police officers were capable and competent to properly carry out their jobs without causing injury to persons, including Plaintiff NEEMA JOHNSON herein.

129. Upon information and belief, prior to the aforementioned incident, defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, had exhibited behavior indicating that they were unable to perform their duties as police officers in a capable and competent manner.

130. As a result of the negligence of the NYPD and the CITY in the hiring, training and retention of the aforementioned police officers, plaintiff NEEMA JOHNSON was caused to sustain serious personal injuries, emotion anguish and deprivation of her civil rights and has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF NEEMA JOHNSON

131. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "81" through "130," inclusive, as if more fully set forth at length herein.

132. Prior to December 16, 2020, THE CITY and NYPD permitted and tolerated a pattern and practice of unjustified, unreasonable and illegal use of unreasonable and excessive force of minorities by police officers of the NYPD. Although such conduct was improper, the officers involved were not disciplined, retrained or prosecuted and such incidents were covered up with claims that the use of excessive force was justified and proper.

133. As a result, police officers of the NYPD were caused and encouraged to believe that the use of excessive force upon minorities would be permitted and tolerated by the CITY and NYPD.

134. In addition to permitting a pattern of practice of improper and excessive use of force, the defendants, CITY and NYPD, have failed to maintain a proper system for the investigation of all incidents of excessive force.

135. Upon information and belief, systemic flaws in the system included, but are not limited to: failing to credit testimony of non-police officer witnesses and uncritically relying on reports prepared by police officers involved in the incident.

136. The foregoing acts, omissions, systemic flaws, policies and customs of THE CITY and NYPD caused their police officers to believe that the use of excessive force would not be aggressively, honestly and properly investigated, with the foreseeable result that police officers would be more likely to engage in such behavior.

137. As a direct and proximate result of the aforesaid acts, systemic flaws, policies and customs of the defendants, CITY and NYPD, the defendant police officers violated the Plaintiff NEEMA JOHNSON's civil rights.

138. As a result of the above, Plaintiff NEEMA JOHNSON was caused to suffer serious personal injuries all to her damage in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF AMAYIA McCRAY

139. On and prior to December 16, 2020, Plaintiff AMAYIA McCRAY, was and still is a resident of the County of Bronx, City and State of New York.

140. Upon information and belief, on and prior to December 16, 2020, THE CITY OF NEW YORK ("THE CITY") was a municipal corporation organized and existing under and by virtue of the laws of the State of New York.

141. Upon information and belief, on and prior to December 16, 2020, defendant THE NEW YORK CITY POLICE DEPARTMENT (hereinafter referred to as "NYPD") was and still is an agency of THE CITY and subject to its control.

142. Upon information and belief, on and prior to December 16, 2020, defendant NYPD was a division of THE CITY organized and existing under and by virtue of the laws of the City and State of New York.

143. Upon information and belief, on and prior to December 16, 2020, defendant P.O. "JOHN" MAJUD – Registry No. 956395, was a duly appointed and acting officer of the NEW YORK CITY POLICE DEPARTMENT.

144. On and prior to December 16, 2020, defendant "JOHN" MAJUD – Registry No. 956395, was acting under color of law, to wit: under color of the statutes, ordinances, regulations, policies, customs and practices of THE CITY and NYPD and/or the State of New York.

145. Upon information and belief, on and prior to December 16, 2020, defendants, JOHN DOES – Police Officers, were duly appointed and acting officers of the NEW YORK CITY POLICE DEPARTMENT.

146. On and prior to December 16, 2020, defendants, JOHN DOES – Police Officers, were acting under color of law, to wit: under color of the statutes, ordinances, regulations, policies, customs and practices of THE CITY and NYPD and/or the State of New York.

147. On February 16, 2021, plaintiff AMAYIA McCRAY caused a Notice of Claim, in writing and sworn to and verified by the claimant's attorney, to be electronically served upon THE CITY and NYPD at the office of the Corporation Counsel of the City of New York.

148. On February 18, 2021, plaintiff AMAYIA McCRAY caused a Notice of Claim, in writing and sworn to and verified by the claimant's attorney, to be personally served upon THE CITY and NYPD at the office of the Corporation Counsel of the City of New York.

149. At least 30 days have elapsed prior to the commencement of this action since the claim was presented to said defendants for adjustment as aforesaid, and they have refused adjustment or payment.

150. A hearing pursuant to the General Municipal Law Subsection 50-h was held on June 2, 2021.

151. This action is timely commenced pursuant to General Municipal Law Subsection 50-i(1) in that the action has been commenced within one year and 90 days after the cause of action thereof accrued.

152. Plaintiff AMAYIA McCRAY has, in all respects, complied with all statutory requirements for the commencement and prosecution of this action.

153. On and prior to December 16, 2020, as members of the NYPD, defendants, "JOHN" MAJUD and JOHN DOES – Police Officers, were agents, employees and servants of THE CITY and acted within the scope of their employment and authority as New York City Police Officers.

154. On December 16, 2020, Plaintiff AMAYIA McCRAY was lawfully present in Apartment 6G of the premises known as and located at 352 Beekman Avenue, Bronx, New York (the "Premises").

155. On December 16, 2020, Plaintiff AMAYIA McCRAY was not violating any laws and, while she was within the Premises, the Premises was searched without a warrant and/or probable cause and Plaintiff was detained and imprisoned without a warrant or probable cause and assaulted, struck, manhandled and subjected to profanity by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers.

156. On December 16, 2020, the Premises was searched without a search warrant and without probable cause by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers.

157. On December 16, 2020, Plaintiff AMAYIA McCRAY was confined for an unreasonable amount of time by defendants, "JOHN" MAGUD and JOHN DOES – Police Officers.

158. On December 16, 2020, the confinement of Plaintiff AMAYIA McCRAY was without probable cause and not based on an arrest warrant.

159. On December 16, 2020, the search and confinement were effectuated by the defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, acting within the scope, course and in furtherance of their employment.

160. As a result of the aforesaid unlawful search and seizure and false confinement, the plaintiff AMAYIA McCRAY sustained serious personal injuries along with humiliation, shame,

indignity, damage to reputation and credit, and suffered emotional and physical distress and injury, all to her damage in a monetary amount, which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF AMAYIA McCRAY

161. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "139" through "160," inclusive, as if more fully set forth at length herein.

162. On December 16, 2020, defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, acted within the scope of their employment and, without justification and without probable cause, imprisoned the plaintiff AMAYIA McCRAY by detaining her without cause and against her will thereby depriving her of her civil rights.

163. The confinement of Plaintiff AMAYIA McCRAY by the defendants was against her will and said confinement was not privileged.

164. As a result of the aforesaid false imprisonment, Plaintiff AMAYIA McCRAY sustained serious permanent personal injuries along with humiliation, shame, indignity, and emotional and physical distress and injury, all to her damage in a monetary amount, which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF AMAYIA McCRAY

165. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "139" through "164," inclusive, as if more fully set forth at length herein.

166. On December 16, 2020, Defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, upon information and belief, did for no apparent reason and without a search or arrest warrant or probable cause, falsely approach, stop, assault, beat, push, search, harass, degrade and humiliate the plaintiff AMAYIA McCRAY, and cause Plaintiff to fear for her safety.

167. On December 16, 2020, the defendants were working and acting within the scope, course and in furtherance of their employment and authority when they intentionally, recklessly and negligently assaulted and manhandled the plaintiff AMAYIA McCRAY.

168. That the assault and manhandling were without probable cause and not leading from a lawful arrest or search warrant.

169. Defendants were reckless, negligent and careless in that they did not stop or refrain from using excessive physical force upon the Plaintiff AMAYIA McCRAY.

170. That as a result of the aforesaid assault and manhandling, the Plaintiff, AMAYIA McCRAY, sustained serious permanent personal injuries.

171. Defendants' actions as aforesaid were wanton, willful and malicious and Plaintiff AMAYIA McCRAY is entitled to punitive damages and attorneys' fees in amounts to be determined upon the trial of this action.

172. As a result of the aforesaid assault and manhandling, the Plaintiff, AMAYIA McCRAY, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit, loss of employment and employment opportunities, and suffered emotional and physical distress and injury, all to her damage in a monetary amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF AMAYIA McCRAY

173. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "139" through "172," inclusive, as if more fully set forth at length herein.

174. Defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, in their actions as police officers, acting under color of law and within the scope of their authority, assaulted and

manhandled the plaintiff AMAYIA McCRAY and unlawfully searched the Premises in violation of 42 U.S.C.A. §1983.

175. The intentional offensive touching of Plaintiff AMAYIA McCRAY by the defendant police officers, when Plaintiff was unarmed, did not pose a threat of death or grievous bodily injury to defendants or others, was done with actual malice toward the Plaintiff AMAYIA McCRAY and with willful and wanton indifference to and deliberate disregard for the constitutional and statutory civil rights of the Plaintiff.

176. Defendants, in their actions as police officers, acting under color of law and within the scope of their authority, unlawfully searched the Premises and deprived the plaintiff AMAYIA McCRAY of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. § 1983.

177. Defendants deprived the plaintiff, AMAYIA McCRAY, by their actions, of her civil rights as guaranteed by statute.

178. The unlawful search and seizure and false confinement were in violation of the civil rights of the Plaintiff AMAYIA McCRAY, and more particularly, in violation of 42 U.S.C.A. § 1983.

179. The deprivation by the defendants of plaintiff AMAYIA McCRAY's civil rights was a result of said defendants acting under color of law and within their authority as law enforcement officers within the employ of THE CITY and the NYPD.

180. The defendant police officers' actions were not privileged or immune.

181. The defendant police officers were not acting with immunity when they deprived plaintiff AMAYIA McCRAY of her civil rights.

182. As a result of the violation of her civil rights, plaintiff AMAYIA McCRAY has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF AMAYIA McCRAY

183. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "136" through "182," inclusive, as if more fully set forth at length herein.

184. NYPD and the CITY were responsible for hiring and training police officers, including the defendant police officers herein, who were competent and capable of properly carrying out their job without causing injury to persons, including Plaintiff AMAYIA McCRAY herein.

185. NYPD and the CITY were negligent, reckless and careless in the hiring, training and retention of the defendant police officers.

186. NYPD and the CITY negligently failed to investigate and determine whether the defendant police officers were capable and competent to properly carry out their jobs without causing injury to persons, including Plaintiff AMAYIA McCRAY herein.

187. Upon information and belief, prior to the aforementioned incident, defendants, "JOHN" MAGUD and JOHN DOES – Police Officers, had exhibited behavior indicating that they were unable to perform their duties as police officers in a capable and competent manner.

188. As a result of the negligence of the NYPD and the CITY in the hiring, training and retention of the aforementioned police officers, plaintiff AMAYIA McCRAY was caused to sustain serious personal injuries, emotional anguish and deprivation of her civil rights and has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF AMAYIA McCRAY

189. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "139" through "188," inclusive, as if more fully set forth at length herein.

190. Prior to December 16, 2020, THE CITY and NYPD permitted and tolerated a pattern and practice of unjustified, unreasonable and illegal use of unreasonable and excessive force of minorities by police officers of the NYPD. Although such conduct was improper, the officers involved were not disciplined, retrained or prosecuted and such incidents were covered up with claims that the use of excessive force was justified and proper.

191. As a result, police officers of the NYPD were caused and encouraged to believe that the use of excessive force upon minorities would be permitted and tolerated by the CITY and NYPD.

192. In addition to permitting a pattern of practice of improper and excessive use of force, the defendants, CITY and NYPD, have failed to maintain a proper system for the investigation of all incidents of excessive force.

193. Upon information and belief, systemic flaws in the system included, but are not limited to: failing to credit testimony of non-police officer witnesses and uncritically relying on reports prepared by police officers involved in the incident.

194. The foregoing acts, omissions, systemic flaws, policies and customs of THE CITY and NYPD caused their police officers to believe that the use of excessive force would not be aggressively, honestly and properly investigated, with the foreseeable result that police officers would be more likely to engage in such behavior.

195. As a direct and proximate result of the aforesaid acts, systemic flaws, policies and customs of the defendants, CITY and NYPD, the defendant police officers violated the Plaintiff AMAYIA McCRAY's civil rights.

196. As a result of the above, Plaintiff AMAYIA McCRAY was caused to suffer serious personal injuries all to her damage in a monetary amount, which exceeds the jurisdictional limits of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the defendants, who are jointly and severally liable:

a. on the First Cause of Action on behalf of plaintiff, MICHAEL MILLNER, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Second Cause of Action on behalf of plaintiff, MICHAEL MILLNER, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Third Cause of Action on behalf of plaintiff, MICHAEL MILLNER, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Fourth Cause of Action on behalf of plaintiff, MICHAEL MILLNER, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Fifth Cause of Action on behalf of plaintiff, MICHAEL MILLNER, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Sixth Cause of Action on behalf of plaintiff, MICHAEL MILLNER, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Seventh Cause of Action on behalf of plaintiff, MICHAEL MILLNER, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Eighth Cause of Action on behalf of plaintiff MICHAEL MILLNER; and plaintiff demands judgment against defendants, who are jointly and

severally liable, for punitive damages and the costs and disbursements of this action, including reasonable attorneys' fees to the Plaintiff and such other and further relief as the Court may deem appropriate;

b. on the First Cause of Action on behalf of plaintiff, NEEMA JOHNSON, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Second Cause of Action on behalf of plaintiff, NEEMA JOHNSON, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Third Cause of Action on behalf of plaintiff, NEEMA JOHNSON, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Fourth Cause of Action on behalf of plaintiff, NEEMA JOHNSON, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Fifth Cause of Action on behalf of plaintiff, NEEMA JOHNSON, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Sixth Cause of Action on behalf of plaintiff, NEEMA JOHNSON, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; and plaintiff demands judgment against defendants, who are jointly and severally liable, for punitive damages and the costs and disbursements of this action, including reasonable attorneys' fees to the Plaintiff and such other and further relief as the Court may deem appropriate; and

c. on the First Cause of Action on behalf of plaintiff, AMAYIA McCRAY, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Second Cause of Action on behalf of plaintiff, AMAYIA McCRAY, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Third Cause of Action on behalf of plaintiff, AMAYIA McCRAY, who has sustained damages in a

monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Fourth Cause of Action on behalf of plaintiff, AMAYIA McCRAY, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Fifth Cause of Action on behalf of plaintiff, AMAYIA McCRAY, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; on the Sixth Cause of Action on behalf of plaintiff, AMAYIA McCRAY, who has sustained damages in a monetary amount, which exceeds the jurisdictional limits of all lower Courts; and plaintiff demands judgment against defendants, who are jointly and severally liable, for punitive damages and the costs and disbursements of this action, including reasonable attorneys' fees to the Plaintiff and such other and further relief as the Court may deem appropriate.

Dated: New York, New York
February 10, 2022

JOSEPH T. MULLEN, JR. & ASSOCIATES

By: _____

Joseph T. Mullen, Jr.
Attorney for Plaintiff
30 Vesey Street, 15th Floor
New York, New York 10007

STATE OF NEW YORK
COUNTY OF NEW YORK

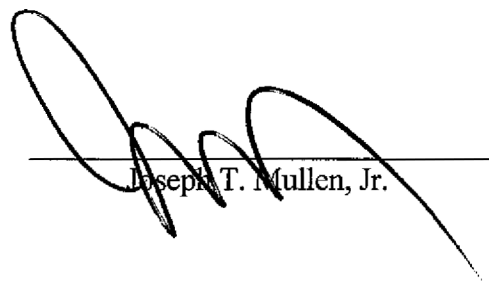
SS:

The undersigned, an attorney admitted to practice in the Courts of New York State, states, that affirmant is the attorney for the plaintiffs, that affirmant has read the foregoing Summons and Verified Complaint and knows the contents thereof, and that the same is true to affirmant's knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters affirmant believes it to be true.

That the reason why this verification is made by affirmant and not by the plaintiffs is because the plaintiffs are not within New York County where the attorneys maintain their offices; and that the source of affirmant's knowledge, and the grounds of belief as to those matters therein stated to be alleged on information and belief are correspondence and investigations which have been made concerning the subject matter of this action, and which are in the possession of the said attorneys.

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
February 10, 2022



Joseph T. Mullen, Jr.

*Index No.**Year*

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MICHAEL MILLNER, NEEMA JOHNSON
and AMAYIA McCRAY,

Plaintiffs,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. "JOHN" MAJUD –
Registry No. 956395, and JOHN DOES – Police Officers,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

JOSEPH T. MULLEN, JR. & ASSOCIATES

Attorneys for Plaintiff
30 Vesey Street, 15th Floor
New York, New York 10007
212.766.1177

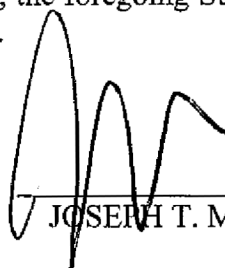
To:

Attorney(s) for

CERTIFICATION PURSUANT TO 22 N.Y.C.R.R. §130-1.1a

I hereby certify that pursuant to 22 N.Y.C.R.R. §130-1.1a, the foregoing Summons and Verified Complaint are not frivolous or being frivolously presented.

Dated: February __, 2022



JOSEPH T. MULLEN, JR.
